

FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01; 16-07; 16-10; 16-11

IN RE: VEHICLE CARRIER SERVICES¹

ORDER REQUIRING JOINT STATUS REPORT

On January 18, 2017, the Third Circuit Court of Appeals issued a decision in federal litigation related to these cases. Motions to stay are currently pending in all of these Commission cases. Prior to ruling on the motions for stay and to ensure efficient handling of these cases, the parties shall meet and confer and file joint status reports in each case by March 1, 2017.

The parties are reminded that the Federal Maritime Commission adjudicates cases arising under the Shipping Act and the parties will need to frame arguments in relation to the Commission's statutes, rules, and case law. Commission Rule 12 states that "[i]n proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. This Rule applies to procedural rules and does not create substantive rights.

As an example, even if the case proceeds as a class action, attorney's fees will not be determined by Federal Rule of Procedure 23(h) but rather will be determined by the Howard Coble Coast Guard and Maritime Transportation Act of 2014 (Coble Act), Public L. No. 113-281, 46 § U.S.C. 41305(e), and the Final Rule, Organization and Functions; Rules of Practice and Procedure; Attorney Fees, 81 Fed. Reg. 10508, Docket No. 15-06 (Feb. 23, 2016), which permit the Commission to determine whether or not to award attorney fees, but not costs, to the "prevailing party" in private party complaint cases.

The following additional requirements will assist the parties in filing the joint status report:

Stay: The parties should indicate whether the Third Circuit decision alters their position on the motions to stay. If so, the parties should briefly summarize their arguments.

¹ The caption has been shortened due to the number of cases. See Schedule A for the list of parties to these cases.

Protective Orders: The parties should discuss whether any orders are required to preserve or protect information. The parties should indicate whether such orders were issued in related cases and whether those orders should continue to remain in effect.

Discovery: The parties should indicate whether discovery was completed in any related cases. Discovery produced in related cases may be utilized in these cases.

Legal Issues: It is anticipated that determination of legal issues may expedite resolution of these cases. Potential issues include: statute of limitations; whether Congress granted the Commission the statutory authority to entertain a class action that would bind members of the class who are not parties to the case; and whether indirect purchasers are eligible for reparations under the Shipping Act. In the joint status report, the parties should identify any other legal issues whose resolution could facilitate settlement of these cases.

Settlement: The parties should discuss settlement. In the joint status report, the parties should indicate when the next settlement conference is scheduled.

Lead/Liaison Counsel: The parties should indicate who is acting as lead and liaison counsel, whether the parties wish to continue with the same lead and liaison counsel, and if not, a proposal for selecting lead and liaison counsel.

Filing Procedure: Parties are required to file documents with the Office of the Secretary via email at *secretary@fmc.gov*, followed by an original and five hard copies via priority or overnight mail. In addition to filing with the Secretary, the parties should email courtesy copies to *judges@fmc.gov*.

Consolidating filings: No more than one joint status report may be filed in each case. If parties are filing documents applicable to more than one case, they may file in multiple cases by using the caption above and after filing by email, sending an original and eight hard copies.

Caption: If filing in one case, use the caption initially assigned. If filing a document in multiple cases, the above caption may be utilized, listing only those case numbers to which the filing applies.

Service by Email: The parties will be presumed to consent to receive service of the rulings, orders, and decisions in this case through email in lieu of service by U.S. mail unless an objection is filed. If the parties are willing to accept service via liaison counsel, they should so indicate in the joint status report. A party must notify the Commission of any change of service address.

Case Management: The parties may propose additional procedures or provide additional information for the efficient management and resolution of these cases.


Erin M. Wirth
Administrative Law Judge

SCHEDULE A

Docket No.	Case Name
16-01	Cargo Agents, Inc., International Transport Management Corp., and RCL Agencies, Inc. v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA) Inc., World Logistics Service (U.S.A.), Inc., Kawasaki Kisen Kaisha Ltd., "K" Line America, Inc., Eukor Car Carriers Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Compañía Sud Americana De Vapores S.A., CSAV Agency North America, LLC, Höegh Autoliners Holdings AS, Höegh Autoliners AS, Höegh Autoliners, Inc., Autotrans AS, Alliance Navigation LLC, and Nissan Motor Car Carrier Co., Ltd.
16-07	Jill M. Alban, Grant M. Alban, Mary Arnold, Al Baker, Katrina Bonar, Emmett R. Brophy, Steven Bruzonsky, Monica Bushey, Craig Buske, Doda "Danny" Camaj, Stephanie B. Crosby, Melinda Deneau, Jennifer Dillon, Jeffrey L. Gannon, Pamela Goessling, Thomas Goessling, Sean Gurney, Sheryl Haley, Lesley Denise Hart, Bruce Hertz, Elizabeth Ashley Hill née Edwards, Maria Kookan, Adair Lara, Christine Laster, Kori Lehrkamp, Michael Lehrkamp, John Leyva, Joan Macquarrie, Daniel Morris, Tony Nikprelaj, Gustavo Adolfo Perez, Judy A. Reiber, Roberta Rothstein, Jeffrey Rubinstein, Alexandra Scott, Jason Smith, Catherine Taylor, Richard Tomasko, and Demian Vargas v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA), Inc., World Logistics Service (USA) Inc., Höegh Autoliners AS, Höegh Autoliners, Inc., Nissan Motor Car Carriers Co. Ltd., Kawasaki Kisen Kaisha, Ltd., "K" Line America, Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Compañía Sud Americana De Vapores S.A., and CSAV Agency North America, LLC
16-10	Rush Truck Centers of Arizona, Inc., Rush Truck Centers of California, Inc., Rush Truck Centers of Colorado, Inc., Rush Truck Centers of Florida, Inc., Rush Truck Centers of Georgia, Inc., Rush Truck Centers of Idaho, Inc., Rush Truck Centers of Kansas, Inc., Rush Truck Centers of North Carolina, Inc., Rush Truck Centers of Ohio, Inc., Rush Truck Centers of Oklahoma, Inc., Rush Truck Centers of Texas, LP, and Rush Truck Centers of Utah, Inc. v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA), Inc., World Logistics Service (USA) Inc., Höegh Autoliners AS, Höegh Autoliners, Inc., Nissan Motor Car Carriers Co. Ltd., Kawasaki Kisen Kaisha, Ltd., "K" Line America, Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Compañía Sud Americana De Vapores S.A., and CSAV Agency North America, LLC

16-11	Landers Brothers Auto Group, Inc., Landers Brothers Auto No. 4, LLC v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA), Inc., World Logistics Service (USA) Inc., Höegh Autoliners AS, Höegh Autoliners, Inc., Nissan Motor Car Carriers Co. Ltd., Kawasaki Kisen Kaisha, Ltd., "K" Line America, Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Compañía Sud Americana De Vapores S.A., and CSAV Agency North America, LLC
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